

COMMISSION IMPLEMENTING DECISION (EU) 2015/261

CELEX id	32015D0261
Document type	Decision
Policy domain	Trade
Year	2015
Legal actor type	Member state authority
Applicable role	Applicant
Language	en

COMMISSION IMPLEMENTING DECISION (EU) 2015/261

of 6 February 2015

amending Decisions 2010/470/EU and 2010/471/EU as regards the animal health certification requirements for trade in and for imports into the Union of semen, ova and embryos of animals of the equine species

(notified under document C(2015) 548)

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Council Directive 92/65/EEC of 13 July 1992 laying down animal health requirements governing trade in and imports into the Community of animals, semen, ova and embryos not subject to animal health requirements laid down in specific Community rules referred to in Annex A (I) to Directive 90/425/EEC (1), and in particular the fourth indent of Article 11(2), the third indent of Article 11(3), Article 17(2)(b), and the first indent of Article 18(1) thereof,

Whereas:

(1)

Directive 92/65/EEC lays down the animal health requirements governing trade in and imports into the Union of semen, ova and embryos not subject to the animal health requirements laid down in specific Union acts. It includes requirements for trade in and for imports into the Union of semen, ova and embryos of animals of the equine species ('the commodities'). In addition, it provides for model health certificates to be established for trade in and for imports into the Union of the commodities.

(2)

Annex D to Directive 92/65/EEC sets out certain requirements for the commodities which shall be included in the model health certificates for trade in and for imports into the Union of the commodities.

(3)

Commission Decision 2010/470/EU (2) laid down model health certificates for trade within the Union in semen, ova and embryos of, amongst others, animals of the equine species.

(4)

Commission Decision 2010/471/EU (3) laid down the conditions for imports into the Union of semen, ova and embryos of animals of the equine species as regards lists of semen collection and storage centres and embryo collection and production teams and certification requirements.

(5)

Following the adoption of Commission Implementing Regulation (EU) No 846/2014 (4), amending Annex D to Directive 92/65/EEC, which introduced new rules concerning the supervision of semen collection centres and set out conditions to be applied to the donor animals of semen, ova and embryos of the equine species in addition to those laid down in Council Directive 2009/156/EC (5), it is necessary to establish new model health certificates for trade in and for imports into the Union of those commodities. Regulation (EU) No 846/2014 is applicable from 1 October 2014.

(6)

Therefore, in the interests of consistency of Union legislation, the model health certificates laid down in Decisions 2010/470/EU and 2010/471/EU should be amended. The commodities collected and dispatched after the date of application of Regulation (EU) No 846/2014 and present Decision should be accompanied by the new model health certificates laid down by this Decision.

(7)

As the commodities have a long shelf life, therefore it is necessary to maintain model health certificates for stocks of commodities which were collected, processed and stored in accordance with Directive 92/65/EEC before the date of application of the amendments introduced by Regulation (EU) No 846/2014, as well as those introduced by Commission Regulation (EU) No 176/2010 (6).

(8)

In addition, point I.11 'Place of origin' of Part I of the model health certificates set out in Decision 2010/471/EU should be amended in order to allow only a single semen collection centre of origin of the semen or a semen storage centre of dispatch of the semen or an approved embryo collection or production team of origin of the ova or embryos and to align it with the model health certificates set out in Decision 2010/470/EU.

(9)

Furthermore, in the model health certificate for imports into the Union of semen of animals of the equine species set out as Model 1 in Section A of Part 2 of Annex I to Decision 2010/471/EU and in the model health certificate for imports into the Union of ova and embryos of animals of the equine species set out as Model 1 in Section A of Part 2 of Annex II to Decision 2010/471/EU, the animal health conditions in relation to vesicular stomatitis should be amended taking into account international standards for health testing set out in the Manual of Diagnostic Tests and Vaccines for Terrestrial Animals (7).

(10)

To further reduce administrative burdens, because it is linked to the zootechnical requirements and is not relevant for the certification of animal health conditions, it is appropriate to delete the information on the breed from point I.31 of Part I of the model health certificates set out in Decision 2010/470/EU and point I.28 of Part I of the model health certificates set out in Decision 2010/471/EU.

(11)

Decisions 2010/470/EU and 2010/471/EU should therefore be amended accordingly.

(12)

The measures provided for in this Decision are in accordance with the opinion of the Standing Committee on Plants, Animals, Food and Feed,

HAS ADOPTED THIS DECISION:

Article 1

Amendments to Decision 2010/470/EU

Decision 2010/470/EU is amended as follows:

1.

Articles 2 and 3 are replaced by the following:

'Article 2

Trade in semen of animals of the equine species

A health certificate in accordance with one of the following models set out in Annex I shall accompany consignments of semen of animals of the equine species during transport from one Member State to another:

(a)

model health certificate IA for trade in the Union in consignments of semen of animals of the equine species collected in accordance with Directive 92/65/EEC after 30 September 2014 and dispatched from an approved semen collection centre of origin of the semen;

(b)

model health certificate IB for trade in the Union in consignments of stocks of semen of animals of the equine species collected, processed and stored in accordance with Directive 92/65/EEC after 31 August 2010 and before 1 October 2014 and dispatched after 31 August 2010 from an approved semen collection centre of origin of the semen;

(c)

model health certificate IC for trade in the Union in consignments of stocks of semen of animals of the equine species collected, processed and stored in accordance with Directive 92/65/EEC before 1 September 2010 and dispatched after 31 August 2010 from an approved semen collection centre of origin of the semen;

(d)

model health certificate ID for trade in the Union in consignments of:

(i)

semen of animals of the equine species collected, processed and stored in accordance with Directive 92/65/EEC after 30 September 2014 and dispatched from an approved semen storage centre;

(ii)

stocks of semen of animals of the equine species collected, processed and stored in accordance with Directive 92/65/EEC:

-

after 31 August 2010 and before 1 October 2014, or

-

before 1 September 2010, and

dispatched after 31 August 2010 from an approved semen storage centre.

Article 3

Trade in ova and embryos of animals of the equine species

A health certificate in accordance with one of the following models set out in Annex II shall accompany consignments of ova and embryos of animals of the equine species during transport from one Member State to another:

(a)

model health certificate IIA for trade in the Union in consignments of ova and embryos of animals of the equine species collected or produced in accordance with Directive 92/65/EEC after 30 September 2014 and dispatched by an approved embryo collection or production team of origin of the ova or embryos;

(b)

model health certificate IIB for trade in the Union in consignments of stocks of ova and embryos of animals of the equine species collected, processed and stored in accordance with Directive 92/65/EEC after 31 August 2010 and before 1 October 2014 and dispatched after 31 August 2010 by an approved embryo collection or production team of origin of the ova or embryos;

(c)

model health certificate IIC for trade in the Union in consignments of stocks of ova and embryos of animals of the equine species collected, processed and stored in accordance with Directive 92/65/EEC before 1 September 2010 and dispatched after 31 August 2010 by an approved embryo collection team of origin of the ova or embryos.’;

2.

Annexes I and II are replaced by the text set out in Annex I to this Decision.

Article 2

Amendments to Decision 2010/471/EU

Decision 2010/471/EU is amended as follows:

1.

in Article 2, point (c) is replaced by the following:

‘(c)

they are accompanied by a health certificate drawn up in accordance with one of the following models set out in Part 2 of Annex I; and completed in accordance with the explanatory notes set out in Part 1 of that Annex:

(i)

MODEL 1 - Model health certificate for imports of consignments of semen of animals of the equine species collected in accordance with Directive 92/65/EEC after 30 September 2014 and dispatched from an approved semen collection centre of origin of the semen;

(ii)

MODEL 2 - Model health certificate for imports of consignments of stocks of semen of animals of the equine species collected, processed and stored in accordance with Directive 92/65/EEC after 31 August 2010 and before 1 October 2014 and dispatched after 31 August 2010 from an approved semen collection centre of origin of the semen;

(iii)

MODEL 3 - Model health certificate for imports of consignments of stocks of semen of animals of the equine species collected, processed and stored in accordance with Directive 92/65/EEC before 1 September 2010 and dispatched after 31 August 2010 from an approved semen collection centre of origin of the semen;

(iv)

MODEL 4 - Model health certificate for imports of consignments of:

-

semen of animals of the equine species collected, processed and stored in accordance with Directive 92/65/EEC after 30 September 2014 and dispatched from an approved semen storage centre,

-

stocks of semen of animals of the equine species collected, processed and stored in accordance with Directive 92/65/EEC:

(a)

after 31 August 2010 and before 1 October 2014; or

(b)

before 1 September 2010; and

dispatched after 31 August 2010 from an approved semen storage centre.

However, where specific certification requirements are laid down in bilateral agreements between the European Union and third countries, those requirements shall apply.’;

2.

in Article 3, point (c) is replaced by the following:

‘(c)

they are accompanied by a health certificate drawn up in accordance with one of the following models set out in Part 2 of Annex II, and completed in accordance with the explanatory notes set out in Part 1 of that Annex:

(i)

MODEL 1 - Model health certificate for imports of consignments of ova and embryos of animals of the equine species collected or produced in accordance with Directive 92/65/EEC after 30 September 2014 and dispatched by an approved embryo collection or production team of origin of the ova or embryos;

(ii)

MODEL 2 - Model health certificate for imports of consignments of stocks of ova and embryos of animals of the equine species collected, processed and stored in accordance with Directive 92/65/EEC after 31 August 2010 and before 1 October 2014 and dispatched after 31 August 2010 by an approved embryo collection or production team of origin of the ova or embryos.

However, where specific certification requirements are laid down in bilateral agreements between the European Union and third countries, those requirements shall apply.’;

3.

Annexes I and II are amended in accordance with Annex II to this Decision.

Article 3

Addressees

This Decision is addressed to the Member States.

Done at Brussels, 6 February 2015.